

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into and made effective as of the date of the last signature below ("Effective Date"), by and between the parties identified below.

Party A : **Nexus IoT Solutions LLC**
Address : 100 Innovation Way, Suite 400, Austin, TX 78701

Party B : **Apex Hardware Manufacturing Corp.**
Address : 450 Industrial Parkway, Building B, San Jose, CA 95131

WHEREAS, the parties desire to evaluate or pursue a potential business relationship or transaction of mutual interest (the "Purpose"); and

WHEREAS, in connection with the Purpose, either party (the "Disclosing Party") may disclose to the other party (the "Receiving Party") certain proprietary, confidential, or non-public technical, financial, or business information;

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all information disclosed by the Disclosing Party to the Receiving Party, whether orally, visually, or in tangible form (including documents, software, data, or samples), that is marked or designated as "Confidential" or "Proprietary," or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

2. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information does not include information that: (a) is or becomes publicly known through no breach of this Agreement by the Receiving Party; (b) was already in the lawful possession of the Receiving Party prior to disclosure; (c) is rightfully received from a third party without restriction; or (d) is independently developed by the Receiving Party without reference to or reliance upon the Disclosing Party's Confidential Information.

3. OBLIGATIONS OF NON-DISCLOSURE AND USE

The Receiving Party agrees to: (a) hold all Confidential Information in strict confidence and exercise at least the same degree of care to protect it as it uses for its own confidential information of a similar nature, but no less than a reasonable standard of care; (b) use Confidential Information solely for the defined Purpose; and (c) restrict access to Confidential Information to its employees, affiliates, advisors, or contractors who need to know such information for the Purpose and who are bound by confidentiality obligations at least as restrictive as those herein.

4. COMPELLED DISCLOSURE

If the Receiving Party is legally compelled by court order, subpoena, or government regulation to disclose any Confidential Information, it shall, to the extent legally permitted, provide prompt written notice to the Disclosing Party

so that the Disclosing Party may seek a protective order or waive compliance. The Receiving Party shall disclose only that portion of the information legally required.

5. TERM AND TERMINATION

This Agreement governs disclosures made within two (2) years from the Effective Date. The Receiving Party's obligations with respect to Confidential Information received under this Agreement shall survive for a period of three (3) years from the date of initial disclosure, except for trade secrets, which shall remain protected for as long as they qualify as trade secrets under applicable law.

6. RETURN OR DESTRUCTION OF INFORMATION

Upon written request by the Disclosing Party or upon termination of this Agreement, the Receiving Party shall promptly return or, at the Disclosing Party's option, securely destroy all copies of Confidential Information and certify such destruction in writing to the Disclosing Party.

7. NO OWNERSHIP OR LICENSE

All Confidential Information remains the exclusive property of the Disclosing Party. Nothing in this Agreement grants, explicitly or implicitly, any license or ownership rights under any patent, copyright, trademark, or trade secret of the Disclosing Party.

8. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Any legal actions arising hereunder shall be brought exclusively in the courts located in Austin, Texas.

9. MISCELLANEOUS

This Agreement constitutes the entire understanding between the parties regarding this subject matter and supersedes all prior discussions or agreements. It may only be amended or modified by a written agreement signed by authorized representatives of both parties. If any provision is found unenforceable, the remaining provisions shall remain in full force and effect.

PARTY A:

Nexus IoT Solutions LLC
Company / Individual Name

By (Authorized Signature)

Name & Title

Date

PARTY B:

Apex Hardware Manufacturing Corp.
Company / Individual Name

By (Authorized Signature)

Name & Title

Date